

24STCV31978 24STCV31978

County: los-angeles

Division: Civil Law and Motion

Department: 11

Hearing date: 2026-08-04

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Case Number: 24STCV31978 Hearing Date: August 4, 2026 Dept: 11

Estrada

(24STCV31978)

Tentative Ruling Re: Motion
to Vacate Dismissal

Date: 8/4/26

Time: 11:00 am

Moving

Party: Marcelino Estrada
("Plaintiff")

Opposing

Party: None

Department: 11

Judge: Bruce G. Iwasaki

TENTATIVE RULING

Plaintiff's motion to vacate dismissal is granted.

BACKGROUND

This is a wage-and-hour representative action brought under Labor Code section 2698, the Private Attorneys General Act.

On April 13, 2026, Judge David S. Cunningham III, now retired, held an order to show cause regarding failure to prosecute (“OSC”). Ultimately, he dismissed the complaint with prejudice because Plaintiff’s counsel failed to attend the OSC and to file a joint report. (See 4/13/26 Minute Order, p. 1.)

Here, Plaintiff moves pursuant to Code of Civil Procedure section 473(b) to vacate the dismissal.

To date, Defendant Die Casting Corp. has not appeared in the case, so the motion is unopposed.

DISCUSSION

Section

473(b) contains a mandatory provision and a discretionary provision. Plaintiff seeks relief under both.

Mandatory Relief

“Mandatory

relief may be sought only from defaults, default judgments and dismissals[.]” (Weil & Brown, Cal. Practice Guide: Civ. Procedure Before Trial (The Rutter Group 2025) ¶ 5:290, emphasis added.) For dismissals, “[r]elief is mandatory only from those dismissals which are the ‘procedural equivalent of a default’; i.e., those which deprive plaintiffs of their day in court.” (Id. at ¶ 5:299.2, emphasis in original.) Examples include “dismissals based on [the] plaintiffs’” “failure to amend or file pleadings within the time ordered by the court,” “failure to respond to discovery ordered by the court,” “failure to oppose a dismissal motion[.]” and “failure to pay transfer fees after an order transferring venue which results in dismissal.” (Ibid., emphasis in original.)

Plaintiff

states:

Plaintiff's counsel attests to and apologizes for the inadvertence and mistake in not being present to make an appearance at the April 13, 2026, case management conference and OSC in the concurrently filed declaration. (Holmes Decl., ¶ 3-6.) On the date of the OSC, Counsel was scheduled to appear at two separate hearings at the same time. (Holmes Decl., ¶3.) In the other matter, there was only one case on calendar. (Holmes Decl., ¶4.) This Court had a number of cases on its 9:30 a.m. calendar. (Id.) Counsel believed that she could request second-call for its matter in this Court, participate in the conference in the other Court, and return to this Court to appear at the OSC. (Id.) Counsel's mistake in underestimating the time this Court would take to call all the cases on its 9:30 a.m. calendar led to counsel inadvertently missing the scheduled hearing.

In preparation for the OSC and Case Management Conference in this Court, counsel had attempted to secure a responsive pleading in this case so that it might proceed as a class action. However, despite proper service, defendant has not appeared. Because in an employment class action the evidence to establish damages remains exclusively with the Defendant employer, Plaintiff is unable to amend the complaint to estimate class wide damages with sufficient detail to support a default judgement as to the class claims.

Plaintiff has exhausted all other options and, should the Court grant the request to vacate the dismissal, seeks relief to file an amended complaint which will dismiss the class claims and allege individual claims and damages. Plaintiff then intends to seek default judgement against Defendants. As a putative class representative, Plaintiff was duty bound to the class to exhaust all other options and counsel intended to ask the Court for leniency on the delay in securing a responsive pleading and taking a default judgement. At the OSC, Plaintiff's counsel intended to request a thirty-day continuance to submit a first amended complaint dismissing the class claims and asserting individual claims and serve Defendants with the amended complaint. Thereafter, Plaintiff anticipated Defendants would, once again, fail to appear and intended to request an entry of default against Defendants.

(Motion,
pp. 5-6.)

The

motion is granted. Plaintiff's counsel admits fault. (See Holmes Decl., ¶¶ 3-7.) "[W]hen an application for relief . . . is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise or neglect, [the court shall] vacate any . . . resulting . . . dismissal entered against his or her client." (Weil & Brown, *supra*, at ¶ 5:292 [quoting section 473(b)], emphasis in original.) Indeed, "[w]here an 'attorney affidavit of fault' is filed, there is no requirement that the attorney's mistake, inadvertence, etc. be excusable." (Id. at ¶ 5:295.) "Relief must be granted even where the [dismissal] resulted from [the attorney's] inexcusable neglect[.]" (Ibid., emphasis in original.)

Discretionary Relief

"Discretionary relief applies 'in connection with any order' and may be granted for" "mistake, inadvertence, surprise or excusable neglect[.]" (Id. at ¶ 5:290.)

Given the preceding analysis, the Court does not need to reach Plaintiff's request for discretionary relief.